

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
13	Parra v. Fueling and Service Technologies, Inc. 2025-01493605	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$385,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Plaintiff should state in a declaration filed with the court whether he anticipates receiving any compensation for any individual claims, the work he has done on the case, and the estimated number of hours he has spent working on the case. 2. The "Released Parties" provision in paragraph 1.42 is overbroad, as it includes unidentified, unrelated and/or ambiguous third parties such as "and their respective owners, officers, directors, agents, attorneys, managers, insurers, and partners." 3. The court prefers a 60-day period for the submission of exclusions, objections and disputes. Are there special circumstances here that warrant the shorter period the parties propose? See, e.g., Settlement Agreement ¶¶ 1.44, 7.4.4, 7.5.1, 7.6, 7.7.2. 4. The "Response Deadline" provision in paragraph 1.44 should include disputes. 5. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 7. The second-to-last sentence in paragraph 5.2 should be removed as its meaning and purpose are unclear. 8. The dispute procedure in the second-to-last sentence in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the

		disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement should also be revised accordingly. 9. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 10. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 11. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. <u>As to the notice:</u> 12. The notice should be revised consistent with the above. 13. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. In addition, redundant section headings (e.g., "BASIC INFORMATION"; "WHO IS INCLUDED IN THE SETTLEMENT?"; etc.) should be removed throughout the document. 14. The phrase "Actions were" in the first paragraph on page 1 should be replaced with "Action was." 15. The word "already" should be removed from the first sentence of the fifth paragraph on page 1. 16. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 17. The following phrase should be inserted after "Defendant" and before "at some point(s)" in the first sentence of section 1: "as an hourly-paid non-exempt employee." 18. The word "Administrator" should not be capitalized in the first sentence of the third paragraph of section 1.
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		19. Section 3 ("Why Is This A Class Action?") should be removed. 20. The second, third and fourth sentences of section 4 should be removed, as should the word "Instead" at the beginning of the fifth sentence. 21. The Gross Settlement Amount in the first sentence of section 7 need not be spelled out in words. 22. The word "Fairness" in the first sentence of section 10 should be replaced with "Approval." 23. The definition of "Released Parties" in second sentence of the first paragraph of section 11 is inconsistent with the settlement agreement which must, as stated above, be revised. 24. The "Released Class Claims" in section 11 is inconsistent with the settlement agreement. 25. The "Released PAGA Claims" in section 11 is appropriately tailored, but inconsistent with the settlement agreement. The "Released PAGA Claims" provision in the settlement agreement should be revised to mirror the definition in section 11 of the notice. 26. The method of submitting an exclusion stated in section 12 is inconsistent with the settlement agreement and should be revised. 27. The court prefers the notice be accompanied by separate objection, exclusion and dispute forms for those class members wishing to object, exclude themselves or dispute the number of workweeks. The settlement agreement and the notice should be revised accordingly to address use of separate objection, exclusion and dispute forms. 28. The first two sentences of section 15 should be removed and be replaced with the following: "Class Counsel's contact information is listed below." 29. The following phrase should be removed from the third sentence of section 17: "and notices of intent to appear at the Final Approval Hearing." 30. The method of submitting objections stated in section 17 is inconsistent with the settlement agreement and should be revised. 31. Section 18 should be removed. 32. The method of submitting objections stated in section 20 is inconsistent with the settlement agreement and should be revised. 33. Will the settlement administrator maintain a website for the case? If so, section 22 should state that the settlement administrator will post all key documents on its website,
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		including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 34. The second sentence of the box in section 22 should be removed. 35. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 41):</u> 36. The proposed order should be revised consistent with the above. 37. The last sentence of paragraph 1 should be revised to state that the settlement agreement (and any amendment(s) thereto) is attached to the proposed order as an exhibit. The reference to the Yslas Declaration should be removed. 38. The phrase "to create" in paragraph 2 should be replaced with "to pay." 39. The word "provisionally" in paragraph 5 should be replaced with "preliminarily." 40. The second sentences of paragraphs 9 and 10 should be removed. 41. Paragraph 11 should end after "the Settlement Administrator." The remaining portion of that sentence should be removed. 42. Paragraph 12 should be revised to remove the reference to the notice packet being attached to the settlement agreement. It is sufficient to state that the notice packet is attached to the proposed order. 43. The phrase "their counsel" should be inserted in paragraph 13 after "Parties" and before "and the Settlement Administrator." 44. Paragraph 14 should be removed. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents.
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14	Sandoval v. Fortis Enterprise Inc. 2025-01461144	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$117,500 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Why is the defendant funding the settlement funds in three installments? Settlement Agreement ¶ III.2. If defendant is paying the settlement in installments due to defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. 2. The parties should provide the estimated high and low individual PAGA payments. 3. Plaintiff should provide her anticipated total amount to be received (including for any individual claims). Plaintiff should also submit a copy of her individual settlement agreement. The court declines to review the document in camera, as all materials filed in support of plaintiff's motion must be part of the court file for this action. If the parties contend the agreement is confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the document before the July 16, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiff's motion until the agreement has been submitted to the court. The motion to seal should explain, <i>inter alia</i>, why plaintiff's individual settlement agreement should be shielded from, e.g., the aggrieved employees whose interests plaintiff purports to represent.